

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 12 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR Part 12 directs contracting activities to use procedures that are, to the maximum extent practicable, consistent with commercial practice.
2. As required by FAR 12.102(a), this document serves as the basis for the determination that only one source is reasonably available to satisfy the agency's requirements. This determination explains the absence of competition for this acquisition, which is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

This requirement is for a subscription to the Augury Silver Software Tool, a cyber intelligence platform only available from Argonne Ridge Group. This software provides broad visibility into the global threat landscape by integrating large-scale data sets, including network traffic, DNS records, and compromised device information, into a single, searchable platform. The software is required to have specific proprietary functions, such as capabilities for retrospective forensic analysis and granular system profiling. Market research has determined that available alternatives provide only narrow or fragmented capabilities. Consequently, using a different tool would degrade mission effectiveness by significantly increasing investigation timelines and reducing the comprehensive situational awareness necessary to protect information assets. The required delivery date is the soonest available date to prevent any gaps in mission capabilities.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. X **ONLY ONE RESPONSIBLE SOURCE** *(select all that apply)*:

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

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Determination that Only One Source is Reasonably Available – FAR Part 12 Acquisitions under the SAT

2. X **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM. The required software is available exclusively from the Original Equipment Manufacturer (OEM), Argonne Ridge Group, who holds all proprietary rights. This software is mission-critical to the II Marine Information Group (II MIG) for cyber defense operations. Market research has determined that specific, essential capabilities are unique to this software, including the function for retrospective forensic analysis ('Time Machine') and the ability to correlate disparate data types (network, DNS, device profiles) within a single platform. The research concluded that all other alternatives are technically unacceptable, as they are limited to providing only fragmented, non-integrated data sets. Using these alternatives would prevent analysts from having comprehensive situational awareness and require them to revert to a manual data correlation process. This would extend investigation timelines from minutes to days, creating an unacceptable delay in incident response and significantly degrading mission effectiveness. Therefore, competition is impracticable because only the specified OEM software can meet the Government's essential requirements without causing significant operational harm.
3. **OTHER REASONS.**

B. *BRAND NAME*

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

C. *URGENT AND COMPELLING.* The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

V. CERTIFICATIONS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

A handwritten signature in white ink on a black rectangular background.

B. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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Distribution List for DL ONLY Limited Dissemination Control

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